

Smt. Baby @ Bebi vs Abhay Gupta on 13 April, 2026

Author: Jaspreet Singh

Bench: Jaspreet Singh

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

Neutral Citation No. - 2026:AHC-LK0:25492

HIGH COURT OF JUDICATURE AT ALLAHABAD

LUCKNOW

MATTERS UNDER ARTICLE 227 No. - 1688 of 2026

Smt. Baby @ Bebi

.....Petitioner(s)

Versus

Abhay Gupta

.....Respondent(s)

Counsel for Petitioner(s)

:

Akash Deep Singh, Divyanshu Pratap Singh, Gulam Rabbani Khan

Counsel for Respondent(s)

:

Court No. - 8

HON'BLE JASPREET SINGH, J.

1. Heard learned counsel for the petitioner.
2. The instant petition has been preferred seeking a direction to the Additional Principal Judge, Family Court No. 7, Lucknow to expedite the hearing of a petition preferred under Section 13-B of the Hindu Marriage Act, 1955.
3. The submission of learned counsel for the petitioner is that a petition under Section 13-B of the Hindu Marriage Act, 1955 was filed by the petitioner and the respondent on 07.03.2026. The same came to be registered as Case No. 746 of 2026.
4. While entertaining the petition, the Court in terms of the mandate as provided under Section 13-B read with the provisions of the Family Courts Act, 1984 fixed the matter for 10.09.2026 to enable the parties to file the second motion. It also placed the matter for mediation and directed the parties to appear on 22.04.2026.
5. It is in the aforesaid context that the petitioner and the respondent moved an application on 22.03.2026 before the Court seeking waiving of the cooling of the period of 6 months. A copy of the said application has been brought on record as part of Annexure-1 at running page 18-19 of the paper-book.
6. From the perusal of the said application, it would indicate that it was alleged that the mediation was attempted by the family members of the respective parties and all the issues were settled. All grievances were resolved and it is thereafter the petition under Section 13-B of the Hindu Marriage Act was filed.
7. It was also stated that the parties have been living separately for more than three years and moreover the present petitioner has already resolve to re-marry and her marriage was fixed for 15.04.2026 and in such circumstances the cooling of period be waived.
8. The Trial Court considering the said application by means of order dated 24.03.2026 rejected the said application noting that there was no urgency in the matter and since the mediation was already fixed on 22.04.2026, hence, there was no justifiable grounds to waive of the cooling period. The Court also noticed that the contention that one of the parties had already resolved to re-marry fixing 15.04.2026 as the date of marriage without seeking divorce, in itself is not a valid ground and it

cannot also give rise to any justifiable ground for waiving of the cooling of period.

9. Being aggrieved, the petitioner has approached this Court assailing the said order indicating that since the marriage is fixed for 15.04.2026, hence, in the given circumstances, all the requirements which are required and as indicated by the Apex Court in *Amardeep Singh v. Harveen Kaur*; 2017 (8) SCC 746, are already attracted in the instant case, consequently, the order passed by the Family Court is bad and deserves to be set aside.

10. The Court has considered the aforesaid submissions and also perused the material on record.

11. From the perusal of the application seeking waiver of cooling period, it would indicate that the only substantive ground which has been mentioned is regarding the fixing of the marriage of one of the parties on 15.04.2026 and in order to substantiate the same, a copy of the wedding card has also been placed on record.

12. A specific query was put to the learned counsel for the petitioner that while the first marriage was still subsisting and the divorce has not been granted, how a second marriage could be solemnized and whether by fixing a date for marriage and then coming before the Court to put it under ransom to waive of the cooling of period, can fall within any of the justifiable grounds as provided in law or even in light of the decision of the Apex Court in *Amardeep Singh* (Supra).

13. Sri Gulam Rabbani Khan, learned counsel for the petitioner submits that the present petitioner belongs to a marginally weaker section of the society and as she has already been living separately from her husband since more than three years and the elder brother of the petitioner has fixed the marriage, in such circumstances, the cooling of period may be waived.

14. Having considered the aforesaid submissions, this Court is of the clear opinion that the explanation furnished by the petitioner does not constitute a justifiable urgent ground. The reasoning given by the Principal Judge, Family Court does not suffer from any palpable error to persuade this Court to entertain the present petition.

15. The core question as to whether during subsistence of an earlier marriage, without seeking a divorce or without even waiting for the second motion, if a party solemnizes or fixes a wedding without there being any accentuating circumstances pleaded on record, it would not constitute a justifiable ground, in the opinion of this Court, without there being any additional material, to be considered for the said purpose. Neither in the aforesaid application nor before this Court any such circumstances have been pleaded or brought on record to persuade this Court to waive of the cooling of period.

16. In the facts and circumstances, this Court finds that the present petition is misconceived and is accordingly dismissed.

(Jaspreet Singh,J.) April 13, 2026 Asheesh